ADVANCE HEALTHCARE DIRECTIVE

Medical Power of Attorney, Living Will & HIPAA Authorization

I, ARTHUR PENDELTON, Date of Birth: 05/14/1975, residing at 742 Evergreen Terrace, Austin, TX 78701, being of sound mind, willfully and voluntarily execute this Advance Healthcare Directive consisting of Part I (Medical Power of Attorney / Healthcare Proxy), Part II (Living Will / Directive to Physicians), and Part III (HIPAA Release & Organ Donation Preferences).

Part I: DESIGNATION OF HEALTHCARE PROXY (MEDICAL POWER OF ATTORNEY)

Section 1.01 Appointment of Primary Healthcare Agent: If I become unable to make my own health-care decisions, as determined by my attending physician, I appoint the following person as my Healthcare Agent to make any and all health-care decisions for me:
• Name: Eleanor Vance Pendelton
• Relationship: Spouse
• Address: 742 Evergreen Terrace, Austin, TX 78701
• Primary Phone: (512) 555-0143 Alternate Phone: (512) 555-0144

Section 1.02 Alternate Healthcare Agents: If my Primary Healthcare Agent is unwilling, unable, or unavailable to act, I appoint:
• First Alternate Agent: Graham M. Pendelton, Relationship: Brother, Phone: (404) 555-0199
• Second Alternate Agent: Clara Vance, Relationship: Sister-in-Law, Phone: (512) 555-0188

Section 1.03 Scope of Agent's Authority: My Healthcare Agent is authorized to consent to, refuse, or withdraw any medical treatment, surgical procedure, diagnostic test, medication, hospitalization, nursing home or hospice care, and life-sustaining treatment on my behalf, in accordance with my wishes stated in Part II below or, if my wishes are unknown, in accordance with my best interests.

Part II: LIVING WILL (DIRECTIVE TO PHYSICIANS & FAMILY)

If I am diagnosed and certified in writing by two qualified physicians to have an incurable or irreversible condition listed below, I direct my physicians and Healthcare Agent as follows:

Section 2.01 Terminal Condition Election: [AP] Choice 1 - Comfort Care Only: I direct that all treatments other than those needed to keep me comfortable and free of pain be discontinued or withheld, and my physician allow me to die as gently as possible.

Section 2.02 Irreversible Coma / Persistent Vegetative State Election: [AP] Choice 1 - Discontinue Life Support: I direct that all treatments other than those needed to keep me comfortable be discontinued or withheld.

Section 2.03 Artificial Nutrition and Hydration: [AP] I DO NOT want artificial nutrition and hydration (tube feeding/IV fluids) if it merely prolongs the dying process or an irreversible vegetative state.

Section 2.04 Pain Relief & Palliative Care: In all circumstances, I direct that I receive maximum palliative care and medication necessary to alleviate pain and discomfort, even if such medication may unintentionally hasten the moment of my death.

Part III: HIPAA RELEASE AUTHORIZATION & ANATOMICAL GIFTS

Section 3.01 Immediate HIPAA Release: Effective immediately, I authorize all health-care providers, hospitals, clinics, and insurers to disclose, release, and discuss all of my Protected Health Information (PHI) and medical records with my Primary and Alternate Healthcare Agents named in Part I above.

Section 3.02 Organ and Tissue Donation: [AP] I give any needed organs, tissues, or parts for transplantation, therapy, or medical research.

EXECUTED this _____ day of _____, 20____.

_____

ARTHUR PENDELTON, Declarant/Principal

WITNESS STATEMENT OR NOTARY ACKNOWLEDGMENT

We declare that the person who signed this document appeared to be of sound mind and signed it willingly in our presence.

Witness 1 Signature: _____ Date: _____
Printed Name & Address: Marcus Vance, 1204 Congress Ave, Austin, TX 78701

Witness 2 Signature: _____ Date: _____
Printed Name & Address: Sarah Jenkins, 4501 Guadalupe St, Austin, TX 78751

NOTARY ACKNOWLEDGMENT

STATE OF TEXAS
COUNTY OF TRAVIS

Before me, the undersigned authority, on this day personally appeared ARTHUR PENDELTON, known to me to be the person whose name is subscribed to the foregoing instrument, and acknowledged to me that he executed the same for the purposes and consideration therein expressed.

Given under my hand and seal of office this _____ day of _____, 20____.

_____

Notary Public, State of Texas
My Commission Expires: _____